

Court No. - 40

Case :- WRIT - C No. - 14602 of 2021

Petitioner :- Dilip Kumar

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sarvodaya Singh

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Misra,J.

Hon'ble Dinesh Pathak,J.

The case called out.

The counsel for the petitioner did not connect to address the Court through video conferencing.

Learned Standing Counsel, representing the respondents 1 to 4, and Sri Narendra Kumar Tiwari, representing the respondent no.5, are virtually present.

Put up, as fresh, again on 19th July, 2021.

Order Date :- 6.7.2021

AKShukla/-

Court No. - 3

Case :- WRIT - C No. - 14602 of 2021

Petitioner :- Dilip Kumar

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sarvodaya Singh

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis,J.

Hon'ble Ajai Tyagi,J.

Heard learned counsel appearing on behalf of the petitioner, learned Standing Counsel for the respondent nos.1 to 4 and Sri. Narendra Kumar Tiwari, learned counsel representing the respondent no.5.

The instant petition has been filed seeking following relief:

"1) Issue a Writ, Order or Direction in the nature of Certiorari to quash the Recovery Certificate dated 21.11.2020 issued by the Respondent No.5, Executive Engineer Electricity Distribution Division Meja, Prayagraj, to the District Magistrate, Prayagraj, (Annexure No. 10 to the writ petition).

2) Issue, a Writ, Order or direction in the nature of Mandamus commanding/directing the Respondents not to harass the petitioner for recovery of Electricity Bill in pursuance of the Recovery Certificate dated 21.11.2020 issued by the Respondent No.5, Executive Engineer Electricity Distribution Division Meja, Prayagraj, to the District Magistrate, Prayagraj, (Annexure No. 10 to the writ petition)."

Learned counsel for the petitioner submits that a demand notice dated 17.03.2020 has been issued against the petitioner by the respondent no.5 for a sum of Rs.12,93,577/-. Later on a recovery certificate dated 21.11.2020 has been issued to recover an amount of Rs.673107/- along with recovery charges as arrears of land revenue. It is further submitted that the electricity bill is too excessive and exaggerated as there is incorrect calculation of the electricity charges. The bill amount needs to be corrected.

On the other hand, learned counsel for the power corporation points out that adequate remedy for correction of bill is contemplated under Clause 6.5 of the UP Electricity Supply Code, 2005 (hereinafter referred to as the 'Code'). The petitioner has not made any such application for correction in accordance with law and therefore, at present, the demand being made is

wholly justified.

Having heard learned counsel for the parties and having perused the record, no useful purpose would be served in keeping the present petition pending or calling for a counter affidavit, at this stage.

Suffice to note that the petitioner has adequate alternative statutory remedy of correction in the disputed bill under Clause 6.5 of the Code.

Accordingly, the writ petition is ***disposed of*** with a direction that in case the petitioner files a proper application disputing the bill giving rise to the recovery before respondent no.5 within a period of two weeks from today along with a copy of this order, the said respondent shall, within one week therefrom, communicate to the petitioner, the amount of pre-deposit required to be made to maintain that application in terms of Clause 6.5(b)(ii) of the Code, at the address supplied by the petitioner in his application. Once the amount has thus been communicated to the petitioner, he shall deposit the same within a further period of two weeks therefrom. Upon deposit of that amount, the respondent no.5 shall proceed to verify the correctness of the claim made by the petitioner and pass appropriate orders giving adequate reasons within a week from the deposit being made by the petitioner and the same shall be communicated to the petitioner.

For a period of one month from today, no coercive measure shall be adopted against the petitioner, subject to the compliance being made to the terms of this order.

Order Date :- 19.7.2021

M. Tariq